

PERFORMANCE WORK STATEMENT

Nationally Recognized Testing Laboratory Field Evaluation Services, NASNI

Puget Sound Naval Shipyard & Intermediate Maintenance Facility
Naval Base Coronado, Naval Air Station North Island
San Diego, CA 92135

PART 1

GENERAL INFORMATION

1. **GENERAL:** This is a non-personal services contract to provide Nationally Recognized Testing Laboratory (NRTL) field evaluation services. The Government shall not exercise direct supervision or control over any contractor employees. Notwithstanding, contractor shall ensure employees comply with all requirements of this Performance Work Statement (PWS) and contract.

1.1 **Description of Services/Introduction:** The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform NRTL field evaluation services as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

1.2 **Background:** Puget Sound & Intermediate Maintenance Facility (PSNS & IMF), San Diego Detachment, Naval Air Station North Island (NASNI). For nearly all electrically powered Industrial Plant Equipment (IPE) assets and portable tools, the Environmental, Safety, and Health Office, Code 106, requires NRTL field evaluation services to verify that equipment and their component parts are in compliance with Occupational Safety and Health Administration (OSHA) Standards. While many assets are factory-certified, not every procured asset is. This effort will provide a means to obtain NRTL field evaluation services for IPE or portable tool procurements where NRTL field evaluation services are not a requirement of the equipment procurement contract.

1.3 **Objectives:** The objective of this service contract is to obtain NRTL field evaluation services for the purpose of verifying that installed IPE and its component parts are in compliance with OSHA standards concerning machine guarding and electrical safety.

1.4 **Scope:** The contractor shall provide third party evaluation of Government owned IPE to certify compliance with the applicable OSHA regulations in accordance with Code of Federal Regulations (CFR) Title 29, Chapter XVII, Part 1910, and to ensure the Government owned IPE has been installed in accordance with National Electrical Code (NEC) and/or National Fire Protection Association (NFPA) requirements. The Government owned equipment that satisfies the applicable OSHA, NEC, NFPA, and/or PSNS&IMF Occupational Safety and Health (OSH) requirements shall be labeled with a NRTL registered certification mark or labeling that identifies that the Government owned equipment is in conformance with the applicable safety and technical standards. A NRTL field evaluation report shall be provided to the Government indicating all deficiencies and implemented or required resolution(s). The NRTL field evaluation report shall indicate whether the Government owned equipment has been labeled or not labeled during the inspection service visit, and if it has been labeled, the field evaluation report shall indicate that the Government owned equipment is in conformance with the applicable safety and technical standards.

1.5 **Period of Performance:** The period of performance shall be for 60 days after date of award.

1.6.1 **Quality Assurance:** The Government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance

standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7 Location:

1.7.1 Place of Performance: The work to be performed under this contract will be performed at a production facility within the following site:

Building 73
Naval Base Coronado, Naval Air Station North Island
San Diego, CA 92135

1.7.2 Hours of Operation: The contractor is responsible for conducting business, between the hours of 7:20a.m. and 4:02p.m. Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.7.3 Recognized Holidays: Contractor is not required to perform services on federal holidays. The list of current federal holidays can be found here: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>

In addition to the above listed holidays, Puget Sound Naval Shipyard is normally closed for all except necessary services during the week between Christmas Day and New Year's Day (curtailment). Necessary services/frequencies for various facilities are noted on the detail sheets and work contracted for shall be performed during this period unless otherwise directed by the Contracting Officer. Exact number of closure days may vary from year to year. Actual requirements will be determined in advance of the closure. On site work performed by the Contractor for the Contractor's convenience during this time must also be specifically requested by the Contractor in writing and approved by the Contracting Officer in advance.

1.8 Security Requirements: Contractor Employees, in order to gain access to the government facility identified in paragraph 1.7.1 to perform work under this contract, shall comply with the Badging and Access Requirements Attachment to the solicitation/contract.

1.8.1 Physical Security: The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

1.9 Special Qualifications: The contract personnel performing third party evaluation of Government owned IPE to certify compliance with the applicable Occupational Safety and Health Administration (OSHA) regulations in accordance with CFR Title 29, Chapter XVII, Part 1910 and ensuring the Government owned IPE has been installed in accordance with NEC/NFPA/PSNS&IMF OSH requirements shall be a trained and qualified employee of an OSHA recognized Nationally Recognized Testing Laboratory who is authorized to certify and label the Government owned equipment with a registered certification mark or label to designate that the equipment is in conformance with the applicable safety and technical standards. The contractor will be required to conform to all Federal NTRL requirements such as, but not limited to, OSHA, NFPA, and Federal Communications Commission (FCC).

1.10 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance.

Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.11 Contracting Officer Representative (COR): The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel.

The COR is NOT authorized to change any of the terms and conditions of this contract. **Only the warranted Contracting Officer is authorized to make modifications/changes to the terms and conditions of this contract.** If the Contractor believes any Government personnel has effectively issued a change resulting in a change in effort and price/cost of the contract, the Contractor shall immediately notify the Contracting Officer in writing.

CORS:

PRIMARY

[REDACTED]

ALTERNATE

[REDACTED]

1.12 Government Technical Points of Contact (TPOC): The TPOC(s) monitor all technical aspects of the contract. The TPOC is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notify both the Contracting Officer and Contractor of any deficiencies; coordinate availability of Government furnished property; and provide site entry of Contractor personnel.

The TPOC(s) are NOT authorized to change any of the terms and conditions of this contract. **Only the warranted Contracting Officer is authorized to make modifications/changes to the terms and conditions of this contract.** If the Contractor believes any Government personnel has effectively issued a change resulting in a change in effort and price/cost of the contract, the Contractor shall immediately notify the Contracting Officer in writing.

TPOCS:

[REDACTED]

1.13 Contract Manager: The contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the contractor when the manager is absent shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the contractor on all contract matters relating to execution of this contract.

1.13.1 Identification of Contractor Employees: All contractor personnel working in situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression that they are Government officials. All contractor personnel on a government installation will be required to obtain and wear badges in the performance of this contract.

PART 2

DEFINITIONS & ACRONYMS

2. DEFINITIONS AND ACRONYMS:

2.1 Common Definitions: Per Clause 52.212-4(e), clause 52.202-1 is incorporated by reference to this contract.

2.2 Special Definitions:

2.2.1 Industrial Plant Equipment (IPE): Plant equipment used for positioning, cutting, abrading, grinding, shaping, forming, joining, testing, measuring, heating, treating, or otherwise altering the physical, electrical, or chemical properties of materials, components, or end use items. IPE, in some cases may also include ventilation systems that are used in support of the operation of IPE.

2.2.2 Nationally Recognized Testing Laboratory (NRTL): Recognizes private sector organizations to perform certification for certain products to ensure that they meet the requirements of both the construction and general industry OSHA electrical standards. Each NRTL has a scope of test standards that they are recognized for, and each NRTL uses its own unique registered certification mark(s) to designate product conformance to the applicable product safety test standards. After certifying a product, the NRTL authorizes the manufacturer to apply a registered certification mark to the product. If the certification is done under the NRTL program, this mark signifies that the NRTL tested and certified the product, and that the product complies with the requirements of one or more appropriate product safety test standards. An organization must have the necessary capability both as a product safety testing laboratory and as a product certification body to receive OSHA recognition as an NRTL.

2.2.3 Registered Certification Mark: A mark, label, or sticker signifying that the NRTL tested and certified the product under the NRTL program, and that the product complies with the requirements of one or more appropriate product safety test standards. Users of the product can generally rely on the mark as evidence that the product complies with applicable OSHA approval requirement(s) and is safe for use in the workplace. After certifying a product under the NRTL program, the NRTL authorizes the manufacturer to apply a registered certification mark to the product.

2.3 Acronyms:

COR	Contracting Officer's Representative
CFR	Code of Federal Regulations
FAR	Federal Acquisition Regulation
IPE	Industrial Plant Equipment
ISO	International Organization for Standardization
KO	Contracting Officer
NASNI	Naval Air Station North Island
NAVSEA	Naval Sea Systems Command
NEC	National Electric Code
NFPA	National Fire Protection Association
NIST	National Institute of Standards and Technology
NRTL	Nationally Recognized Testing Laboratory
OSH	Occupational Safety and Health (manual)
OSHA	Occupational Safety and Health Administration
PSNS&IMF	Puget Sound Naval Shipyard & Intermediate Maintenance Facility
PWS	Performance Work Statement
QASP	Quality Assurance Surveillance Plan
REF	Reference

TPOC

Technical Point of Contact

PART 3
SPECIFIC TASKS

3. SPECIFIC TASKS:

3.1 Table 1: Equipment Information

	#1
Code 106 Tool Review	25-0327
Asset Description	Shear
Manufacturer	Betenbender Manufacturing
Model	41/2
Serial Number	281323
PSNS Asset ID Number	4523A24210
Utility Requirements	480v\ 40amp Breaker
Installation Location	Building 73 Machine Shop
Shop Point of Contact	

3.2 NRTL Field Evaluation Services: The contractor shall provide onsite Occupational Safety and Health Administration (OSHA) recognized NRTL field evaluation services for the equipment listed in Table 1 (PWS 3.1) to verify that Government owned IPE or portable tool, its installation if applicable, and component parts is in compliance with the requirements of 29 CFR 1910, NFPA 70, NFPA 79, and PSNS&IMF OSH Vol I Chapter 9. Compliance and/or approval shall be specified under the "Approval" and "Acceptance" criteria in the OSHA regulations Subpart "O", Machinery and Machine Guarding paragraph 1910.212, and Subpart "S", Electrical paragraph 1910.303 and paragraph 1910.399.

3.3 OSHA Approved Certification: Each Government owned IPE or portable tool listed in Table 1, and its installation if applicable, shall be inspected, approved as defined in 29 CFR 1910.399, and labeled with a Registered Certification Mark (ref. CDRL A001) by a Nationally Recognized Testing Laboratory as defined in 29 CFR 1910.7. An NRTL Field Evaluation Report shall be provided to the Government for each IPE or portable tool evaluated (ref. CDRL A002). The report shall identify at a minimum issue/certification date, IPE evaluated, all deficiencies or lack thereof, and methods of resolution for those deficiencies.

PART 4
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

4. GOVERNMENT FURNISHED ITEMS AND SERVICES:

4.1 Services: The Government will provide personnel from organization to assist (e.g. equipment access, demonstration or operation of the equipment being inspected) before and during each field evaluation service.

4.2 Materials: The Government will furnish Operations and Maintenance manuals, IPE assembly drawings, electrical schematics/diagrams, and/or electronics schematics/diagrams that are provided by the Original Equipment Manufacturer at the installation or field evaluation location for the IPE.

PART 5
CONTRACTOR FURNISHED ITEMS AND SERVICES

5. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

5.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 4 of this PWS.

5.2 Materials: The Contractor shall furnish an NRTL registered certification mark for the IPE after it is determined to be in compliance with NRTL standards.

5.3 Equipment: The Contractor shall provide all electronics, diagnostic devices (e.g. voltage meters, multimeters), and small tools (e.g. screwdrivers, Allen wrenches) that are necessary to access IPE internals and perform all inspections and tests that are required to confirm that the inspected IPE satisfied NEC/NFPA machine guarding and electrical safety requirements.

PART 6
APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS):

6.1 The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures.

Code of Federal Regulations (CFR)

6.2 29 CFR 1910-----Occupational Safety and Health Standards

National Fire Protection Association (NFPA)

6.3 NFPA 70-----National Electrical Code

6.4 NFPA 79-----Electrical Standard for Industrial Machinery

Puget Sound Naval Shipyard and Intermediate Maintenance Facility (PSNS&IMF), Occupational Safety and Health (OSH) Manual

6.5 OSH Volume I, Chapter 9-----Listing Requirements for Electrical Equipment

PART 7
ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. ATTACHMENT/TECHNICAL EXHIBIT LIST:

7.1 Technical Exhibit 1 – Performance Requirements Summary:

7.2 Technical Exhibit 2 – Deliverables Schedule:

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Standard	Performance Threshold	Method of Surveillance
PRS # 1. The contractor shall provide OSHA recognized NRTL field evaluation services, ref. PWS 3.2.	The contractor provided NRTL field evaluation services by a trained and qualified employee of an OSHA recognized NRTL who is authorized to certify and label equipment to designate conformance with the applicable safety and technical standards.	Zero deviation from standard.	Validated Customer Complaint

TECHNICAL EXHIBIT 2

Deliverables Schedule

Deliverable	Frequency	# of Copies	Medium/Format	Submit To
NRTL Registered Certification Mark, ref. PWS 3.3.	Immediately upon IPE or portable tool approval as defined in 29 CFR 1910.399.	One (1).	Adhesive label displaying NRTL logo or otherwise signifying that the NRTL tested and certified the item under the NRTL program.	COR (ref. PWS 1.11)
NRTL Field Evaluation Report, ref. PWS 3.3.	Within 10 business days of service visit completion.	One (1).	Electronic (PDF/DOC), contractor format.	COR (ref. PWS 1.11)